

Mushahid v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 April 2023 · WRIT-C No. 10743 of 2023 · **Relegated to a rule 6.5 objection before the Executive Engineer.**

HEADNOTE

Without examining the merits of an arrears bill raised after permanent disconnection, the Court left the consumer free to move an objection under Rule 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer, Electricity Distribution Division-II, Amroha, to be considered and decided strictly in accordance with law.

FACTUAL SUMMARY

Mushahid took connection No. 003010 on 4 February 2015 for an atta chakki at Lalloo Nagla, Kothi, under Electricity Distribution Division-II, Amroha. The supply was permanently disconnected on 5 March 2018 after he paid Rs. 50,000. On 30 August 2022 the Executive Engineer issued an arrears bill of Rs. 6,29,783.99. A registered representation of 6 January 2023 asking that the bill be recalled drew no decision. He filed a writ to quash the bill and to have that representation decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Post-disconnection arrears bill left to a clause 6.5 objection

HOLDING

The writ to quash the post-disconnection arrears bill is not decided on merits. The consumer is left at liberty to move an objection under Rule 6.5 of the Electricity Supply Code, 2005 before respondent no. 3, the Executive Engineer, Electricity Distribution Division-II, Amroha, and any such objection is to be considered and decided strictly in accordance with law. ¶ 3

FLAG Court styles Supply Code clause 6.5 as 'Rule 6.5'.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to quash the arrears bill in writ and left the consumer to move a Rule 6.5 objection. ¶ 3

billing-objection-to-executive-engineer-under-6.5 The objection is to be lodged before the Executive Engineer, Electricity Distribution Division-II, Amroha, and decided in accordance with law. ¶ 3

clause-6.5-statutory-remedy-disputed-bill The dispute over the arrears bill of Rs. 6,29,783.99 was treated as a matter for the Rule 6.5 remedy rather than writ adjudication. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS BILL OF RS. 6,29,783.99 DATED 30 AUGUST 2022, RAISED AFTER PERMANENT DISCONNECTION AND PAYMENT OF RS. 50,000, WAS PAYABLE.

The Court expressly did not advert to the merits and did not direct disposal of the representation dated 6 January 2023.

¶ 3